

Court No. - 46

Case :- WRIT - C No. - 19044 of 2020

Petitioner :- Jayant Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C., Shrawan Kumar Tripathi

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

At the request of Shri Shrawan Kumar Tripathi, learned counsel for the respondent nos.2 & 3, put up this case on 2.12.2020 as unlisted to enable him to obtain instruction. The name of Shri Shrawan Kumar Tripathi be shown as counsel for the respondent.

Order Date :- 23.11.2020

M. Tariq

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Counsel for Respondent :- C.S.C., Shrawan Kumar Tripathi

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Hon'ble Vivek Varma, J.

Heard Shri Sunil Kumar Srivastava, learned counsel for the petitioner, learned Standing Counsel appearing for respondents No. 1, 4 and 5 and Shri Shrawan Kumar Tripathi, learned counsel appearing on behalf of respondent No. 2 and 3.

The instant writ petition has been filed praying for following relief:

"1. *Issue a writ, order or direction in the nature of certiorari quashing the recovery notice dated 29.7.2020 issued by respondent No. 5, Tehsildar, Tehsil Sadar, district mainpuri.*

2. *Issue a writ, order or direction in the nature of mandamus directing the respondents-authorities to correct the disputed bill under Section 6.5 of U.P. Electricity Code, 2005 and provide the correct bill of the petitioner.*

3. *Issue a writ, order or direction in the nature of mandamus directing the respondents to permit the petitioner for deposit the amount in easy installments."*

Learned counsel for the petitioner has disputed the accuracy of the bill issued by respondent-Corporation.

Shri Shrawan Kumar Traipathi, learned counsel for the respondent-Corporation submits that petitioner has a remedy to approach the authority concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005. He further submits that in case the petitioner approaches the said authority, the competent authority shall consider the same and pass appropriate order within the stipulated period.

Considering the facts and circumstances of the case, the petitioner is directed to approach the competent authority under Clause 6.5 of the

Electricity Supply Code, 2005 within 15 days from today, the said authority shall consider the case of the petitioner and pass appropriate orders in accordance with law within a period of one month thereafter.

With the aforesaid observations, the writ petition stands disposed of.

Order Date :- 2.12.2020

Ishrat